



Bass Strait Central Zone Scallop Fishery Management Plan 2002

made under section 17 of the

Fisheries Management Act 1991

Compilation No. 9

Compilation date: 14 October 2024

Includes amendments: F2024L01167

Prepared by the Office of Parliamentary Counsel, Canberra

About this compilation

This compilation

This is a compilation of the *Bass Strait Central Zone Scallop Fishery Management Plan 2002* that shows the text of the law as amended and in force on 14 October 2024 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

Contents

Part 1	Preliminary	3
1	Name of Management Plan	3
3	Definitions	3
4	Application of catch to statutory fishing rights	5
5	Geographical coordinates	6
6	Objectives (Act s 17 (5))	6
7	Measures by which the objectives are to be achieved (Act s 17 (5))	6
8	Performance criteria against which measures taken may be assessed (Act s 17 (5))	7
9	Bycatch (Act s 17 (6D))	8
10	Persons to whom the Management Plan applies	8
Part 2	Statutory fishing rights	9
Division 1	Right to fish in the fishery	9
11	Who may fish in the fishery	9
12	Quantity of scallops that may be taken	9
13	Fishing methods	10
14	Right to use a boat for scientific research	10
Division 2	Registration of eligible persons for grant of statutory fishing rights	11
15	Conditions for registration (Act s 26)	11
Division 3	Grant of statutory fishing rights	11
16	Provisional grants (Act s 23)	11
18	Request for grant (Act s 31)	11
19	Certificate showing grant (Act s 22 (2))	13
20	Expiry of boat statutory fishing rights	13
Division 4	Obligations of holders of statutory fishing rights	13
22	Other obligations of holders of statutory fishing rights	13
Part 3	Total allowable catch	15
27	Determination of total allowable catch	15
28	Amendment of total allowable catch	15
Part 4	Miscellaneous	16
30	Delegation	16
31	Agents	16
32	Notices	16
Part 5	Transitional	18
33	Transitional	18
Schedule 1	Area of the fishery	19

Endnotes	24
Endnote 1—About the endnotes	24
Endnote 2—Abbreviation key	25
Endnote 3—Legislation history	26
Endnote 4—Amendment history	27

Part 1 Preliminary

1 Name of Management Plan

This Management Plan is the *Bass Strait Central Zone Scallop Fishery Management Plan 2002*.

3 Definitions

In this Management Plan:

Act means the *Fisheries Management Act 1991*.

acting for a person, means acting with the consent of, and on behalf of, the person.

adjacent area, in relation to a State, has the same meaning as it has in the *Petroleum (Submerged Lands) Act 1967*.

agent, of the holder of a statutory fishing right, means:

- (a) a person responsible for the affairs and property of the holder under a law of the Commonwealth, a State or a Territory, including a receiver, liquidator, trustee or guardian of the holder, or an executor or administrator of the holder's estate; or
- (b) a person appointed as the holder's agent under section 31.

approved form means the form approved by AFMA for the purposes of the section in which the term is used.

area of the fishery means the area described in Schedule 1.

Bass Strait Central Zone Scallop Fishery means fishing for scallops in the area of the fishery.

boat statutory fishing right means a right to use a nominated boat in the area of the fishery.

certificate, for a statutory fishing right, means a certificate given under subsection 22 (2) of the Act as evidence of the grant of the statutory fishing right.

Committee means the Bass Strait Central Zone Scallop Fishery Management Advisory Committee established under section 54 of the *Fisheries Administration Act 1991*.

eligible person means a person who is registered as an eligible person for a grant of a statutory fishing right under section 26 of the Act.

fishery means the Bass Strait Central Zone Scallop Fishery.

fishing season means the period determined by AFMA.

Note Under subsection 17(6B) of the Act, a determination of a fishing season is a legislative instrument for the purpose of the *Legislation Act 2003*.

fish receiver permit means a fish receiver permit that authorises the holder of the permit to receive scallops from a person mentioned in section 10.

harvest strategy means the strategy for the fishery, created under the Commonwealth Fisheries Harvest Strategy Policy, that sets out the management actions necessary to achieve defined biological and economic objectives in the fishery.

identification code, for a boat, means the identification code allocated by AFMA to the boat under section 80 of the *Fisheries Management Regulations 2019*.

interested person, in relation to a direction or determination, means:

- (a) a person who is able to show a continuing connection with the fishery that is likely to be affected by the direction or determination; or
- (b) an organisation or association (whether incorporated or not) whose objects or purposes include, or whose activities largely relate to, the fishery.

Examples Interested persons could include the following:

- (a) environmental organisations with an interest in the area of the fishery;
- (b) persons carrying out other activities in the area of the fishery;
- (c) persons involved in processing scallops from the fishery.

nominated boat, for a boat statutory fishing right, means a boat of which the details are entered in the Register, under section 45 of the Act, as a nominated boat for the right.

quota, for a quota statutory fishing right, means the amount of scallops of a particular species, expressed in shell weight, that may be taken, in a fishing season, under the fishing right.

quota statutory fishing right, for a fishing season, means a right to take, from the area of the fishery, a particular amount (being the quota allocated to the right for the fishing season) of a species of scallop during the fishing season.

scallop means a scallop of a species mentioned in Schedule 2.

shell weight means the weight of a scallop before processing (other than chilling or freezing) and before any part of the scallop has been removed.

total allowable catch, for a species of scallop, means the total shell weight of scallops of that species that may be taken under quota statutory fishing rights in a fishing season by fishing in the area of the fishery, as determined by AFMA under Part 3.

Note Unless otherwise stated, a term used in this Management Plan and in the Act has the same meaning in this Management Plan as it has in the Act. The following terms are defined in subsection 4 (1) of the Act:

- AFMA
- AFZ
- Australian boat
- fish receiver permit
- fishing
- fishing permit
- Panel
- precautionary principle
- processing
- Register
- scientific permit
- statutory fishing right
- take.

4 Application of catch to statutory fishing rights

- (1) For the purposes of this Management Plan, scallops taken by, or on behalf of, the holder of 2 or more quota statutory fishing rights are applied against the quota statutory fishing rights in accordance with subsection (2).
- (2) For the purposes of subsection (1), the scallops are applied progressively against each quota statutory fishing right, in turn, so that each quota statutory fishing right is fully accounted for before any scallops are applied against the next quota statutory fishing right.
- (3) For the purposes of this Management Plan, if AFMA increases the quantity of scallops that may be taken under a statutory fishing right during a fishing season, the application of any scallops taken by, or on behalf of, a person who holds 2 or more statutory fishing rights must be recalculated so that:
 - (a) the greatest possible number of quota statutory fishing rights is fully accounted for; and
 - (b) no more than 1 statutory fishing right is partly accounted for.
- (4) For the purposes of this section:
 - (a) a quota statutory fishing right is **fully accounted for** if the maximum permissible quantity of scallops has been applied against it; and
 - (b) a quota statutory fishing right is **partly accounted for** if a quantity of scallops less than the maximum permissible quantity has been applied against it.

5 Geographical coordinates

The origin of geographical coordinates used in this Management Plan is the Geodetic Datum of Australia 1994 (GDA94).

6 Objectives (Act s 17 (5))

The objectives of this Management Plan are as follows:

- (a) to manage the fishery efficiently and cost-effectively for the Commonwealth;
- (b) to ensure that the exploitation of the resources of the fishery and the carrying on of any related activities are conducted in a manner consistent with the principles of ecologically sustainable development and the exercise of the precautionary principle, and in particular, the need to have regard to the impact of fishing activities on non-target species and the long-term sustainability of the marine environment;
- (c) to maximise economic efficiency in the exploitation of the resources of the fishery;
- (d) to ensure AFMA's accountability to the fishing industry and to the Australian community in management of the resources of the fishery;
- (e) to reach Government targets for the recovery of the costs of AFMA in relation to the fishery;
- (f) to ensure, through proper conservation and management, that the living resources of the AFZ are not endangered by over-exploitation;
- (g) to achieve the best use of the living resources of the AFZ.

7 Measures by which the objectives are to be achieved (Act s 17 (5))

The measures by which the objectives of this Management Plan are to be achieved include the following:

- (a) granting transferable statutory fishing rights for the fishery to eligible persons;
- (b) directing statutory fishing right holders, as necessary, not to engage in fishing to ensure the sustainability of the resources of the fishery;
- (c) setting and varying the total allowable catch for each species of scallop each year in the fishery in accordance with the harvest strategy;
- (d) implementing a program of research, data collection and monitoring relevant to the assessment and management of the fishery;
- (e) establishing an effective program of catch monitoring and surveillance of the fishery to ensure compliance with the Management Plan;
- (f) developing a series of biological, economic and other data that can be used to assess the fishery;

-
- (g) developing, implementing and reviewing the bycatch action plan mentioned in section 9;
 - (h) supporting the Committee in facilitating the development of sound, cost-effective fisheries management for the fishery;
 - (i) preparing an annual budget of costs associated with managing the fishery, and setting and collecting levies and fees for the fishery;
 - (j) publishing information about the fishery;
 - (k) using the results of research to ensure fishing is conducted in an economically efficient and ecologically sustainable way;
 - (l) checking accuracy and consistency of information kept in relation to the fishery.

8 Performance criteria against which measures taken may be assessed (Act s 17 (5))

- (1) The performance criteria against which the measures taken may be assessed are:
 - (a) that effective strategies are in place to ensure that stocks of any depleted fish resources are being rebuilt; and
 - (b) that a total allowable catch is set for each species of scallop for each fishing season and that the amount of scallops taken in a fishing season does not exceed the total allowable catch for the season; and
 - (c) that cost-effective and high quality research is carried out in relation to the fishery in accordance with a 5-year strategic research plan, the results of which are:
 - (i) included in the assessment process for the fishery; and
 - (ii) published in the assessment reports for the fishery; and
 - (iii) taken into consideration in determining the total allowable catch in a fishing season; and
 - (d) that data is collected and analysed in a timely manner to enable:
 - (i) evaluation of the effectiveness of the strategies to maintain or rebuild the resources of the fishery at, or to, an acceptable level; and
 - (ii) modification of those strategies; and
 - (e) that a bycatch action plan is implemented and reviewed in accordance with section 9, and data is collected to enable an assessment of the impact of harvesting scallops in the fishery; and
 - (f) that data on the current and potential net economic returns of the fishery has been collected and analysed to enable:
 - (i) a periodic assessment of whether the data is consistent with improvements in the economic efficiency of the fishery; and
 - (ii) modification of institutional arrangements to allow improvements in the economic efficiency of the fishery; and

-
- (g) that the budgetary objectives of the fishery are achieved; and
 - (h) that statutory fishing rights are granted.
- (2) AFMA and the Committee must, from time to time, assess the effectiveness of the measures taken to achieve the objectives of this Management Plan by reference to the performance criteria.
 - (3) AFMA must include in its annual report for a financial year a statement of the extent to which the performance criteria were met in the year.

9 Bycatch (Act s 17 (6D))

- (1) AFMA must implement a bycatch action plan to ensure that:
 - (a) the incidental catch of scallops not taken under, and in accordance with, this Management Plan; and
 - (b) the incidental catch of other species; are reduced to, or kept at, a minimum.
- (2) The bycatch action plan must provide for:
 - (a) assessment of the impact of harvesting scallops in the fishery; and
 - (b) implementation of measures to minimise any adverse effects of fishing on the environment.
- (3) AFMA must review the bycatch action plan at least once every second year after the commencement of this Management Plan to ensure that it is appropriate for ensuring that the incidental catch of species other than scallops is reduced to a minimum.

10 Persons to whom the Management Plan applies

This Management Plan applies to a person who:

- (a) engages in fishing for scallops in the area of the fishery; or
- (b) receives scallops taken from the area of the fishery.

Note Paragraph 22 (1) (a) of the *Acts Interpretation Act 1901* provides that **person** includes a body politic or corporate as well as an individual.

Part 2 Statutory fishing rights

Division 1 Right to fish in the fishery

11 Who may fish in the fishery

- (1) Before 1 February 2007, a person may engage in fishing for scallops of a particular species in the area of the fishery only if the person:
 - (a) holds, or is acting on behalf of another person who holds, a quota statutory fishing right that allows the person to take scallops of that species and a boat statutory fishing right; and
 - (b) is using a boat that is registered as a nominated boat for the boat statutory fishing right and the quota statutory fishing right; and
 - (c) is acting in accordance with the statutory fishing rights.
- (2) On or after 1 February 2007, a person may engage in fishing for scallops of a particular species in the area of the fishery only if the person:
 - (a) holds, or is acting on behalf of another person who holds, a quota statutory fishing right that allows the person to take scallops of that species; and
 - (b) is using the nominated boat for the quota statutory fishing right; and
 - (c) is acting in accordance with the statutory fishing right.

12 Quantity of scallops that may be taken

- (1) Subject to section 14, in a fishing season, the holder of a quota statutory fishing right must not take from the area of the fishery an amount of scallops of a species greater than the quota allocated to the right in relation to that species for the season.
- (2) If the quota allocated to a quota statutory fishing right increases during a fishing season, the holder of the right is taken to have contravened subsection (1) if the amount of scallops of a species taken by the holder before the increase was greater than the quota allocated to the right before the increase.
- (2A) If the quota allocated to a quota statutory fishing right decreases during a fishing season, the holder of the right is exempt from subsection (1) if:
 - (a) immediately before the decrease, the amount of scallops of a species taken by the holder during the fishing season was equal to or less than the quota allocated to the right before the decrease; and

-
- (b) the holder of the right does not take any more scallops of that species after AFMA gives the holder a notice under subsection 28 (4).

Note The quota allocated to a quota statutory fishing right will increase or decrease if AFMA increases or decreases the total allowable catch for a species of scallop under section 28.

- (3) On a trip, the holder of a quota statutory fishing right must not take from the area of the fishery an amount of scallops greater than the total amount that may be taken under:
- (a) the right; and
 - (b) any other quota statutory fishing rights for which the boat is a nominated boat.
- (4) For the purposes of subsections (1) to (3), the following scallops are not included as part of the amount taken:
- (a) scallops taken under a scientific permit granted under section 14.
- (6) The quota allocated to a quota statutory fishing right for a fishing season is worked out by dividing the total allowable catch for the species in the fishing season by the total number of quota statutory fishing rights in force for the species at the start of the fishing season.
- (7) In working out the quota allocation for a quota statutory fishing right in a fishing season, a quota statutory fishing right that is suspended under subsection 38 (1) or (3), or paragraph 98 (3) (d), of the Act is taken to be in force.

13 Fishing methods

Repealed

14 Right to use a boat for scientific research

A person may use a boat in the area of the fishery for scientific research about the fishery only if the person is, or is acting for, the holder of a scientific permit that authorises the use of the boat in the area of the fishery for that purpose.

Note See section 33 of the Act about the grant of a scientific permit.

Division 2 Registration of eligible persons for grant of statutory fishing rights

15 Conditions for registration (Act s 26)

- (1) Subsection (2) applies if AFMA publishes a notice, under section 24 of the Act, declaring that AFMA intends to grant statutory fishing rights for the fishery.
- (2) A person satisfies the conditions for registration as an eligible person for the grant of a statutory fishing right if the person held a fishing permit for the fishery on 1 March 2001.

Note 1 See section 24 of the Act about publication of a notice by AFMA declaring that AFMA intends to grant fishing rights for fishing in a managed fishery.

Note 2 An application for registration as an eligible person for the grant of a statutory fishing right must be made within the period stated in a notice published under section 24 of the Act: see paragraph 25 (f), and subsection 26 (1), of the Act.

Note 3 Under subsection 26 (2) of the Act, AFMA must register as an eligible person an applicant for registration who meets the conditions for registration and who has paid the prescribed fee.

Note 4 A decision under subsection 26 (2) of the Act is subject to reconsideration under section 165 of the Act: see subsection 165 (2). Application may be made to the Administrative Review Tribunal for review of a decision under section 165 of the Act: see subsection 165 (7).

Division 3 Grant of statutory fishing rights

16 Provisional grants (Act s 23)

If a person is registered as an eligible person for the grant of a statutory fishing right, AFMA must make a provisional grant to the person, for each fishing permit for the fishery held by the person on 1 March 2001, of:

- (a) 3 500 quota statutory fishing rights for each species of scallop; and
- (b) 1 boat statutory fishing right.

Note See:

- (a) section 23 of the Act about the provisional grant of a statutory fishing right; and
- (b) Part 8, Division 3 of the Act about review by the Statutory Fishing Rights Allocation Review Panel.

18 Request for grant (Act s 31)

- (1) AFMA may grant a statutory fishing right to a person only if:
 - (a) a notice mentioned in subsection 23 (2) of the Act stating that the person is to be granted the right is published in the *Gazette* (the ***Gazette notice***); and

-
- (b) the person asks AFMA to make the grant.

Note 1 Under subsection 23 (3) of the Act, AFMA must not grant a statutory fishing right:

- (a) until the end of the period within which applications may be made to the Panel for review of provisional grants; or
- (b) if an application has been made to the Panel — before the application has been dealt with by the Panel or otherwise disposed of.

Note 2 Subsection 30 (2) of the Act provides that a grant ceases to be available to a person if the person does not tender the amount of charge due and payable under the *Statutory Fishing Rights Charge Act 1991* within 30 days after the grant becomes available to the person. At the time when this Management Plan was made, there was no charge payable under that Act for statutory fishing rights granted other than by auction or tender.

- (2) If the person does not make the request within 30 days after the *Gazette* notice is published, AFMA must send a notice (the **reminder notice**) to the person telling the person that the person must make the request within a period stated in the notice.
- (3) If the person does not make the request within the period stated in the reminder notice, AFMA must send another notice (the **final notice**) to the person stating that the person's registration will be cancelled if the person does not, within 14 days after the final notice is sent:
 - (a) make the request; and
 - (b) explain why the person did not make the request within the period stated in the reminder notice.
- (4) AFMA must cancel the person's registration as an eligible person if, despite a final notice, the person does not:
 - (a) make the request within 14 days after the final notice is sent; and
 - (b) satisfy AFMA that the person had a reasonable excuse for not making the request within the period stated in the reminder notice.
- (5) If AFMA cancels a person's registration as an eligible person, AFMA must amend its records accordingly.

Note 1 AFMA must grant a statutory fishing right to a person to whom the grant of the right is available if the person asks AFMA to grant the right: see section 31 of the Act.

Note 2 A decision under section 31 of the Act (other than a decision following an auction, tender or ballot) is subject to reconsideration under section 165 of the Act: see subsection 165 (2). Application may be made to the Administrative Review Tribunal for review of a decision under section 165 of the Act: see subsection 165 (7).

Note 3 A statutory fishing right ceases to have effect if AFMA revokes this Management Plan: see subsections 20 (4) and 22 (3) of the Act.

Note 4 AFMA must register all statutory fishing rights granted: see section 45 of the Act.

19 Certificate showing grant (Act s 22 (2))

- (1) AFMA must note the following details on the certificate for a statutory fishing right:
 - (a) the name of the person to whom the right is granted;
 - (b) a description of the right;
 - (c) that the right is granted for the fishery;
 - (d) the conditions to which the right is subject.
- (2) A certificate may show the grant of more than 1 statutory fishing right to a person.
- (3) AFMA must give, to a person to whom a statutory fishing right is granted, an extract of the Register:
 - (a) that states:
 - (i) the conditions to which the right is subject; and
 - (ii) the name and identification code of each nominated boat for the right; and
 - (b) that is signed for AFMA by a person having authority to sign it.

Note Section 45 of the Act provides that AFMA must enter certain information in the Register for each statutory fishing right that it grants, including such particulars as are prescribed. The *Fisheries Management (Bass Strait Central Zone Scallop Fishery) Regulations 2002* prescribe details that must be entered in the Register in relation to each nominated boat for a statutory fishing right.

20 Expiry of boat statutory fishing rights

Boat statutory fishing rights cease to have effect on 1 February 2007.

Division 4 Obligations of holders of statutory fishing rights

22 Other obligations of holders of statutory fishing rights

- (1) Subject to section 14, the holder of a statutory fishing right may engage in fishing for scallops in the fishery only during the fishing season.
- (2) It is a condition of a quota statutory fishing right that the holder must:
 - (a) comply with this Management Plan; and
 - (c) take reasonable precautions to ensure that the incidental catch of a species that the holder is not entitled to take is kept to a minimum; and
 - (f) if AFMA asks the holder to give AFMA biological, economic or technical information, or biological samples available to the holder — give AFMA the information or samples; and

Note 1 Other conditions of a statutory fishing right are set out on the certificate for the right. These include size limits on the scallops that may be taken, reporting requirements and conditions regarding AFMA's vessel monitoring system.

Note 2 The holder of a statutory fishing right must also comply with relevant Regulations, including the *Fisheries Management Regulations 2019*, the *Fisheries Management (Bass Strait Central Zone Scallop Fishery) Regulations 2002* and the annual levy Regulations.

Note 3 See section 42 of the Act about logbook requirements. If the holder of a statutory fishing right breaches the requirements, the holder could be issued with an infringement notice under the Regulatory Powers Act (as applied by section 98A of the *Fisheries Management Act 1991*) or the right could be suspended.

Note 4 See also subsections 22 (3), (4) and (5) of the Act for other conditions to which a statutory fishing right is subject.

Note 5 See section 38 of the Act about AFMA's power to suspend a statutory fishing right if it has reasonable grounds to believe that there has been a contravention of a condition of the right.

Part 3 Total allowable catch

27 Determination of total allowable catch

- (1) Before the beginning of the fishing season, AFMA must determine the total allowable catch for each species of scallop for the fishing season.
- (3) Before deciding the total allowable catch for a species for a fishing season, AFMA:
 - (a) must consult the Committee and consider the Committee's views; and
 - (b) may consider the views of other interested persons.
- (4) At least 48 hours before the start of a fishing season, AFMA must give the holder of each quota statutory fishing right a notice stating:
 - (a) the total allowable catch for the species to which the right relates for the fishing season; and
 - (b) the quota allocated to the right for the fishing season.

28 Amendment of total allowable catch

- (1) During a fishing season, AFMA may vary the total allowable catch for a species of scallop for the season.
- (2) *Repealed*
- (3) Before varying the total allowable catch for a species of scallop, AFMA:
 - (a) must consult the Committee and consider the Committee's views; and
 - (b) may consider the views of other interested persons.
- (4) If AFMA varies the total allowable catch for a species of scallop under subsection (1), AFMA must give, to each holder of a quota statutory fishing right for the species to which the variation relates, written notice of the variation.
- (5) The notice must also state the quota allocated to the right for the fishing season.

Part 4 Miscellaneous

30 Delegation

AFMA may, by writing under its common seal, delegate to an officer of AFMA any of its powers or functions under this Management Plan, except its powers under sections 27 and 28 and this section.

31 Agents

- (1) If the holder of a statutory fishing right appoints a person to be the holder's agent for a matter to which this Management Plan applies, the holder must give AFMA a notice that states:
 - (a) the name of the agent; and
 - (b) the powers that may be exercised by the agent.
- (2) A notice must be accompanied by the instrument, or a certified copy of the instrument, by which the holder appointed the agent.
- (3) For the purposes of this Management Plan, the appointment of an agent by the holder of a statutory fishing right is of no effect unless AFMA has been told about the appointment under subsection (1).
- (4) In deciding an application under this Management Plan:
 - (a) AFMA may assume that a notice given under this section is properly given; and
 - (b) AFMA need not verify, by other means, the authority of the agent to make the application.

32 Notices

- (1) In this section:

address or **facsimile number**, for the holder of a statutory fishing right, means the holder's address, or facsimile number, stated in the Register.

notice means a notice that is required, or allowed, by this Management Plan to be given in writing.

working day means a day that is not:

 - (a) a Saturday or Sunday; or
 - (b) a public holiday in the place to which the notice is sent.
- (2) A notice to the holder of a statutory fishing right is taken to be given to the holder if it is:
 - (a) delivered to the holder's residential or office address; or

-
- (b) posted to the holder's postal address; or
 - (c) sent by facsimile to the holder's facsimile number.
- (4) A notice to a person is taken to have been given to the person if it is delivered to the person's last known address.
- (5) A notice given to the holder of a statutory fishing right under this section is taken to have been given to the holder:
- (a) if the notice is delivered to the holder's residential or office address — on the day when it is delivered; and
 - (b) if the notice is sent by facsimile to the holder's facsimile number:
 - (i) 24 hours after the notice is sent; or
 - (ii) if that period does not end between 9 am and 5 pm on a working day in the place to which the notice is sent — at 9 am on the next working day in that place.

Note Under subsection 160 (1) of the *Evidence Act 1995*, it is presumed (unless evidence is sufficient to raise doubt about the presumption is adduced) that a postal article sent by pre-paid post addressed to a person at a specified address in Australia or in an external Territory was received at that address on the fourth working day after having been posted.

Part 5 Transitional

33 Transitional

- (1) This section ceases to have effect on the day specified in a notice published in the *Gazette* under subsection (2).
- (2) When the first statutory fishing rights granted under this Management Plan come into effect, AFMA must publish a notice in the *Gazette* stating that this section ceases to have effect on a day specified in the notice.
- (3) The day specified in a notice under subsection (2) must not be earlier than the day on which the notice is published.
- (4) Despite section 10, a person may engage in fishing for scallops in the area of the fishery if the person holds a fishing permit that is in force.
- (5) This Management Plan does not affect a fishing permit, or a condition to which the permit is subject.
- (6) This Management Plan does not prevent AFMA from granting or transferring a fishing permit.

Schedule 1 **Area of the fishery**

(section 3)

That part of the AFZ contained within the area bounded by a line beginning at 40° 45' 00" S, 140° 57' 57" E and running progressively:

- east along the parallel 40° 45' 00" S to its intersection with the meridian 144° 15' 00" E;
- north along that meridian to its intersection with the parallel 40° 20' 00" S;
- north-easterly along the geodesic that runs through 40° 04' 00" S, 144° 47' 00" E to its intersection with the line, every point on which is 20 nautical miles seaward of the baseline from which the coastal waters of Tasmania are measured;
- generally easterly along that line to its intersection north of Tasmania with the meridian 146° 47' 00" E;
- north-easterly along the geodesic to 40° 37' 00" S, 146° 59' 00" E;
- north-easterly along the geodesic to 40° 30' 00" S, 147° 16' 00" E;
- north-easterly along the geodesic to 40° 29' 00" S, 147° 25' 00" E;
- north-westerly along the geodesic to 40° 18' 00" S, 147° 22' 00" E;
- north-westerly along the geodesic to 40° 04' 00" S, 147° 19' 00" E;
- north along the meridian 147° 19' 00" E to its intersection with the parallel 39° 53' 00" S;
- north-easterly along the geodesic to 39° 36' 00" S, 147° 32' 00" E;
- south-easterly along the geodesic that runs through 39° 44' 00" S, 147° 51' 00" E to its intersection with the outer limit of coastal waters adjacent to, and north-west of, Flinders Island;
- generally north-easterly and south-easterly along that outer limit to its intersection east of Flinders Island with the parallel 39° 56' 00" S;
- east along that parallel to its intersection with the meridian 150° 25' 00" E;
- north along that meridian to its intersection with the boundary between the adjacent areas in relation to Victoria and New South Wales;
- north-westerly along that boundary to its intersection with the outer limit of the coastal waters of Victoria;
- generally south-westerly along that outer limit to its intersection with the meridian 149° 59' 00" E;
- south along that meridian to a point 20 nautical miles seaward of the nearest point of the baseline from which the coastal waters of Victoria are measured;

-
- generally south-westerly along the line, every point on which is 20 nautical miles seaward of the nearest point of the baseline from which the coastal waters of Victoria are measured, to its intersection with the parallel 39° 00' 00" S;
 - west along that parallel to its intersection with the outer limit of the coastal waters of Victoria east of Wilson's Promontory;
 - generally southerly along that outer limit to its intersection with the boundary between the adjacent areas in relation to Victoria and Tasmania;
 - west along that boundary to its westernmost intersection with the outer limit of the coastal waters of Victoria;
 - generally northerly and westerly along that outer limit to its intersection with the meridian 146° 00' 00" E;
 - south along that meridian to a point 20 nautical miles seaward of the nearest point of the baseline from which the coastal waters of Victoria are measured;
 - generally westerly along the line, every point on which is 20 nautical miles seaward of the nearest point of the baseline from which the coastal waters of Victoria are measured, to its intersection with the meridian 140° 57' 57" E;
 - south along that meridian to the point of commencement;
- but excluding all areas that are part of the coastal waters of Tasmania or Victoria.

Schedule 2 Species of scallop

(section 3)

Item	Common name	Scientific name	Marketing name
1	Commercial scallop	<i>Pecten fumatus</i>	Scallop
2	Doughboy scallop	<i>Chlamys (Mimachlamys) asperrimus</i>	Doughboy scallop

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnote 2—Abbreviation key

ad = added or inserted	o = order(s)
am = amended	Ord = Ordinance
amdt = amendment	orig = original
c = clause(s)	par = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
Ch = Chapter(s)	prev = previous
def = definition(s)	(prev...) = previously
Dict = Dictionary	Pt = Part(s)
disallowed = disallowed by Parliament	r = regulation(s)/rule(s)
Div = Division(s)	reloc = relocated
ed = editorial change	renum = renumbered
exp = expires/expired or ceases/ceased to have effect	rep = repealed
F = Federal Register of Legislation	rs = repealed and substituted
gaz = gazette	s = section(s)/subsection(s)
LA = <i>Legislation Act 2003</i>	Sch = Schedule(s)
LIA = <i>Legislative Instruments Act 2003</i>	Sdiv = Subdivision(s)
(md) = misdescribed amendment can be given effect	SLI = Select Legislative Instrument
(md not incorp) = misdescribed amendment cannot be given effect	SR = Statutory Rules
mod = modified/modification	Sub-Ch = Sub-Chapter(s)
No. = Number(s)	SubPt = Subpart(s)
	<u>underlining</u> = whole or part not commenced or to be commenced

Endnote 3—Legislation history

Endnote 3—Legislation history

Name	FRL registration and gazettal	Commencement	Application, saving and transitional provisions
Bass Strait Central Zone Scallop Fishery Management Plan 2002	7 Nov 2002	7 Nov 2002 (s 2 and gaz 2002, No. S422)	
Bass Strait Central Zone Scallop Fishery Management Plan Amendment 2004 (No. 1)	29 Nov 2004	29 Nov 2004 (s 2 and gaz 2004, No. S476)	—
Bass Strait Central Zone Scallop Fishery Management Plan Amendment 2010 (No. 1)	30 Apr 2010 (F2010L01126)	1 May 2010 (s 2)	—
Fisheries Legislation (Management Plans) Amendment 2011 (No. 1)	19 Dec 2011 (F2011L02746)	Sch 3: 20 Dec 2011 (s 2)	—
Fisheries Legislation (Management Plans) Amendment 2013 (No. 1)	30 Apr 2014 (F2014L00457)	Sch 1: 1 May 2014 (s 2)	—
Bass Strait Central Zone Scallop Fishery Management Plan Amendment 2014	27 May 2014 (F2014L00609)	28 May 2014 (s 2)	—
Fisheries Management Plans Amendment 2016	3 May 2016 (F2016L00627)	Sch 1: 4 May 2016 (s 2)	—
Bass Strait Central Zone Scallop Fishery Management Plan Amendment Instrument 2019	17 Sept 2019 (F2019L01209)	Sch 1 (items 3–19): 1 Mar 2020 (s 2(1) item 2) Remainder: 1 Oct 2019 (s 2(1) item 1)	—
Fisheries Management Legislation Amendment (Minor Updates to Management Plans) Instrument 2024	16 Sept 2024 (F2024L01167)	Sch 1 (items 1–5): 14 Oct 2024 (s 2(1) item 1)	—

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
Part 1	
s 2.....	rep LA s 48D
s 3.....	am No 1, 2004; F2010L01126; F2011L02746; F2019L01209
s 7.....	am F2010L01126
s 8.....	am F2019L01209
Part 2	
Division 1	
s 11.....	am F2011L02746
s 12.....	am F2010L01126; F2014L00457; F2019L01209
s 13.....	rep F2019L01209
Division 2	
s 15.....	am F2024L01167
Division 3	
s 17.....	rep F2011L02746
s 18.....	am F2024L01167
Division 4	
s 21.....	rep F2011L02746
s 22.....	am F2010L01126; F2011L02746; F2016L00627; F2024L01167
Div. 5 of Part 2	rep F2011L02746
s 23.....	rep F2011L02746
Div. 6 of Part 2	rep F2011L02746
s 24.....	rep F2011L02746
s 25.....	rep F2011L02746
s 26.....	rep F2011L02746
Part 3	
s 27.....	am F2010L01126; F2014L00609; F2019L01209
s 28.....	am F2010L01126; F2019L01209
Part 4	
s 29.....	rep F2011L02746
s 30.....	am F2011L02746
s 32.....	am F2010L01126
s 33.....	<u>exp (s 33(1))</u>
Schedule 1	
Schedule 1.....	am 2004 No. 1
Schedule 2	
Schedule 2.....	am 2004 No. 1 rs F2010L01126

Endnote 4—Amendment history

Provision affected	How affected
Schedule 3.....	rep F2010L01126